Kevin D. Turnage
1003 E Pinto Ct
Gilbert, AZ 85296
901-220-8664
kdturnage@protonmail.com
Plaintiff in Pro Se

UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Petitioner, v. Robert F Kennedy, JR, et al. , Defendant.	Case No.: CV-25-03367-PHX-SMB **MOTION FOR PROTECTIVE ORDER (PRELIMINARY INJUNCTION)**

I. INTRODUCTION

Plaintiff Kevin D. Turnage respectfully moves this Honorable Court, before the Hon. Susan M. Brnovich, for a protective order—herein requested as a preliminary injunction—prohibiting Defendant Indian Health Service ("IHS") from taking any further retaliatory personnel actions against him. This motion is supported by the accompanying

Memorandum of Law and the declarations filed herewith.

II. STATEMENT OF FACTS

1. **Employment**. Plaintiff is a career federal employee (GS-0610-12) serving as a Nurse Consultant and Policy & Procedures Officer at the Phoenix Indian Medical Center, a component of IHS.

2. **Protected Disclosures** In June 2025 and prior, Plaintiff made multiple protected disclosures to the Office of Special Counsel, the HHS Office of Inspector General, the Centers for Medicare & Medicaid Services, the Joint Commission, and Members of Congress. The disclosures alleged:

- a. Patient-safety violations and hazardous radiation-protocol failures;
- b. Misuse of federal funds and procurement-policy breaches;
- c. Systemic failures in internal policy compliance and governance.

Each disclosure was made in the good-faith belief that the information evidenced a violation of law, gross mismanagement, waste of funds, abuse of authority, or a substantial danger to public health and safety. **[See Exhibit A]**

3. **Retaliatory Personnel Actions**. Within weeks and sometimes within hours of those disclosures, IHS placed Plaintiff on a series of non-duty, paid leaves:

- a. **Administrative Leave** – June 27 – July 14, 2025 (10 workdays). No written threat or legitimate-interest analysis was provided.
- b. **Investigative Leave** – July 15 – August 26, 2025 (30 workdays). Issued without the statutory justification required by 5 U.S.C. § 7513(b) or 5 C.F.R. § 630.1505(b).
- c. **First Extension** – August 27 – October 9, 2025 (30 workdays). The extension was unsigned and lacked required approvals.
- d. **Second Extension** – October 10 – November 25, 2025 (30 workdays). Again unsigned and deficient.
- e. **Notice Leave** – Began November 25, 2025 "until further notice." Plaintiff was barred from entering IHS facilities without prior approval. No justification provided.

4. **Constructive Suspension**. From June 27 through November 25, 2025, Plaintiff was on non-duty paid status for 108 federal workdays—far exceeding the 14-day threshold for constructive suspension under 5 U.S.C. § 7512(2) and 5 C.F.R. § 752.404.

5. **Due Process Deficiencies**. None of the leave actions included a written determination of threat or justification. No less-restrictive alternatives (such as reassignment or use of annual leave) were considered, in violation of 5 U.S.C. § 7513(b), 5 C.F.R. § 630.1505(b), and the Indian Health Manual.

6. **Retaliation Nexus**. The close timing between disclosures and the first adverse action (less than 30 days), and the pattern of increasingly restrictive actions, supports a causal

link under 5 U.S.C. § 2302(b)(8) and (b)(9).

III. LEGAL BASIS

Authority	Relevance
Whistleblower Protection Act — 5 U.S.C. § 2302(b)(8)	Bars personnel actions in retaliation for protected disclosures.
Constructive Suspension Doctrine — 5 U.S.C. § 7512(2); 5 C.F.R. § 752.404	Placement in a non-duty status for more than 14 days is an adverse action requiring due process.
Due Process Requirements — 5 U.S.C. § 7513(b); 5 C.F.R. § 630.1505(b)	Requires written justification of the threat and an opportunity to respond before or shortly after placement on investigative leave.
OPM Memo CPM 2025-01	Limits investigative leave extensions to 30 days and requires appropriate approvals and documentation.
Indian Health Manual, Chapter 6	States that investigative leave is a last resort and requires specified approvals and documentation.
Case Law — *Abbott* (2014 MSPB 47); *Rosario-Fabregas* (833 F.3d 1342); *Burlington Northern v. White*	Supports constructive suspension theory and retaliation claims based on materially adverse personnel actions.
28 U.S.C. § 1345; Fed. R. Civ. P. 65	Authorizes federal courts to issue injunctive relief where irreparable harm and other Rule 65 factors are met.

IV. REQUEST FOR PROTECTIVE ORDER

Pursuant to 28 U.S.C. § 1345 and Fed. R. Civ. P. 65, Plaintiff requests a protective order that:

1. Enjoins IHS from further adverse personnel actions or access restrictions;

2. Orders immediate reinstatement to the GS-0610-12 position with full duties and benefits;
3. Requires future personnel actions to be pre-approved by EEOC, with written justification and opportunity to respond;
4. Bars any retaliation, intimidation, or harassment of Plaintiff, his counsel, or witnesses;
5. Awards attorney's fees and costs under 5 U.S.C. § 7701(a);
6. Grants such other and further relief as the Court deems just and proper.

V. PRAYER FOR RELIEF

Plaintiff respectfully requests that this Court:

1. Grant the requested protective order;
2. Reinstate Plaintiff immediately with back pay and benefits;
3. Enjoin further retaliatory or discriminatory actions;
4. Award costs and fees;
5. Grant any other appropriate relief.

Respectfully submitted,
s/ Kevin D. Turnage
Kevin D. Turnage, MSN Ed, RN

Plaintiff, Pro Se
1003 E. Pinto Ct
Gilbert, AZ 85296
Phone: 901-220-8664
Email: kdturnage@protonmail.com

Dated: December 3, 2025